Note

PREAMBLE

We, the students of the Federal University of Technology, Owerri having firmly and solemnly resolved to evolve an effective and responsible student governing body to encourage a healthy student staff-administration relationship, to ensure the welfare of students and their full participation in students' government, to stimulate growth among students towards progressive citizenship; to motivate and encourage students toward nation and responsibly, against any violation of fundamental human rights, in accordance with the objectives of the university; DO HEREBY MAKE, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

CONTENTS

CONTENTS

Article 1: Citation
Article 2: Fundamentals, Aims and Objective
Article 3: General Provisions
Article 4: Membership Rights and Privileges
Article 5: Organs of the Students' Union
Article 6: Executive Council, Powers and Functions
Article 7: Meetings of the Executive Council
Article 8: Students' Representative Council (SRC)
Article 9: The Judiciary
Article 10: The Hall/Embassy Government
Article 11: The Students' Congress
Article 12: Electoral Commission
Article 13: Elections
Article 14: Qualification for Standing Elections
Article 15: Tenures of Offices
Article 16: Students' Union Finances
Article 17: Budget/Budget Procedures
Article 18: Students' Union Vehicle(s) Movement/Usage
Article 19: Affiliated Clubs and Association/Societies
Article 20: Standing Committee
Article 21: Ad-Hoc Committee
Article 22: Discipline
Article 23: Power of Recall
Article 24: General
Article 25: Miscellaneous Provision
Article 26: Definitions
Article 27: Amendments of this Constitution
Article 28: Schedules

Note

B. OATH FOR MEMBERS OF THE FUTO SRC

I, _____, a member of the FUTO SRC, do solemnly swear that I will be faithful and bear true allegiance to the Students' Union, Federal University of Technology, Owerri, Imo State, Nigeria, and the Federal Republic of Nigeria; that as a member of the SRC, I will perform my functions honestly and to the best of my ability, faithfully, in accordance with the constitution of the Students' Union, Federal University of Technology, Owerri, and the law. I will abide by the conduct contained in the Articles of the Students' Union constitution and the rules of the SRC always, in the interest of the sovereignty, integrity, solidarity, well-being, and prosperity of the Federal University of Technology, Owerri; that I will strive to preserve the fundamental aims and objectives contained in the constitution of the Students' Union, Federal University of Technology, Owerri, and that I will preserve, protect and defend the constitution of the Students' Union, Federal University of Technology, Owerri.

So help me God.

…….. ....……

Signature of Office Holder Signature of Oath Giver

ARTICLE 1: CITATION

The constitution shall be known as, and called the constitution of the Students' Union, Federal University of Technology, Owerri, herein after referred to as "The Constitution."

ARTICLE 2: (FUNDAMENTALS)

a. FUTO Anthem

Hurrah Our Great Fed Unitech,
Owerri Town You've Come to Grade,
Hope Of Our Land to Industrialize and Comfort for Our People,
My Alma Mater.

Here In Owerri! Unitech,
The World's Great Mind,
And Thinkers Meet to Teach and Mould Talented Youth,
Who'll Build Africa's Land Of Hope,
My Alma Mater.

From North and South. And East to West
Converge We Wisdom here to seek,
Fellowship, Endurance and Skill,
May We These Great Virtues Find,
My Alma Mater.

b. SUG Aluta Anthem

Aluta continua
Aluta continua
Aluta ..... Gbosa
Aluta ..... Gbosa
Aluta continua

Victoria Ascerta
Victoria Ascerta
Victoria ..... Gbosa
Victoria ..... Gbosa
Victoria Ascerta

Education must be free
Education must be free
Education ..... Gbosa
Education ..... Gbosa
Education must be free

c. Aims and Objectives:

1. To respect the constitution of the Federal Republic of Nigeria and the rule of law and the constituted authority of the Federal University of Technology Owerri.
2. To promote the good name of the Federal University of Technology, Owerri.
3. To work towards the achievement of the aims and objectives of the Federal University of Technology, Owerri.
4. To evolve an effective and responsible Students' Union.
5. To maintain and protect the Constitution and the image of the members.
6. To maintain and encourage cordial and faithful relationship amongst all her members irrespective of country, state of origin, sex, religion and or political belief.
7. To encourage harmonious Students-Staff University Administration Relationship.
8. To create a veritable forum for culture, social intellectual. Physical and, moral development of the members.
9. To extol and employ dialogue as a means of solving problems within the Union and between the Union, the community and the University Administration.
10. To condemn and oppose all types of injustices, oppression and victimization through constitutional means.
11. To ensure the non-existence of secrete cults and other illegal organizations on the campus.
12. To eschew violence at all times and under all condition.
13. To seek solutions to the problems of the poor, the handicapped and the destitute.
14. To co-operate with similar students' organization (s) within and outside Nigeria.

2. Second Schedule: Oaths of Office

A. OATH FOR UNION EXECUTIVES

I, _____, do solemnly swear that I will be faithful and bear true allegiance to the Students' Union, Federal University of Technology, Owerri, Imo State, Nigeria, and that I will discharge my duties to the best of my ability, faithfully, and in accordance with the constitution of the Students' Union, Federal University of Technology, Owerri, and the law, always in the interest of the integrity, solidarity, well-being, and prosperity of the University; that I will strive to preserve the fundamental aims and objectives contained in the constitution of the Students' Union, Federal University of Technology, Owerri. I will not allow my personal interests to influence my official conduct or decisions, and in all circumstances, I will do right by all students according to the law, without fear or favor, affection or ill will; that I will not directly nor indirectly communicate or reveal to any person any matter brought under my consideration or which becomes known to me as Executive of the Students' Union, Federal University of Technology, Owerri, except as may be required for the due discharge of my duties as Executive. I will devote myself to the service and well-being of the students of the Federal University of Technology, Owerri, Imo State, Nigeria.

So help me God.

…….. …….

Signature of Office Holder Signature of Oath Giver

4. The SRC shall, in subsequent sitting(s), deliberate on, reject, modify, and/or adopt the amendment by at least a two-thirds (2/3) majority of members present in a properly constituted House.
5. The amendment shall be sent to the President, SUG, for endorsement to the University's Senate. The amendments shall thereafter be published on the Union's Notice Board(s).

ARTICLE 28: SCHEDULES

1. First Schedule: Format For Notice of Alleged Misconduct

We, the undersigned, being members of the Students Representative Council, do hereby give notice of an alleged misconduct against.

_____
Name of office and post

_____
Particulars of alleged misconduct

_____
Particulars of the Petitioners

S/N	Name of Student	Reg. No.	School/Dept	Signature and Date

15. To ensure and maintain a conducive learning environment through all these laws enacted.

ARTICLE 3: GENERAL PROVISIONS

1. This Constitution is supreme and its provisions shall have binding force on all bodies, authorities and person(s) under the Students' Union.
2. The Students' Union shall not be governed nor shall any person or group of persons take control of the Union except in accordance with the provisions of this Constitution.
3. If any other law or decision of any body, authority of person within the ambit of the Students Union is inconsistent with the provision of the constitution, the constitution shall prevail and such other law(s) and/or decision(s) shall to the extent of its/their inconsistency be null and void.

ARTICLE 4: MEMBERSHIP, RIGHTS AND PRIVILEGES

MEMBERSHIP

1. **Members:** All matriculated students of the Federal University of Technology; Owerri shall be eligible for membership, irrespective of race, gender, age, religion, nationality and ethnicity provided that, in enjoying such rights, the rights of other people are not infringed upon, on payment of the registration fee, and shall have immunity over unlawful harassment and molestation.

i. **Regular Members:** These shall be all matriculated students of Federal University of Technology, Owerri, and duly registered as members of the union.

ii. Honorary Member

a. Shall be appointed by the executive council and ratified by the students' representative council (SRC) as deemed fit for the interest of the individual student's academic endeavours and other contributions to the Federal University of Technology, Owerri and/or to the society in general.

b. Shall have the privileges to:
   (i) Use the facilities and equipment of the Union
   (ii) Use the official colours and emblems of the Union.
   (iii) Participate in all functions organized by the students' Union
c. Shall have no voting rights
d. Shall not be more than 4 in the life span of any Union government.

iii. Affiliated Members

a. Students pursing sub degree program of the Federal University of technology, Owerri may become affiliate members of the Union provided.
b. Affiliated members shall
   i. Use the official colour and emblems of the Union
   ii. Become members of the recognized and affiliated societies of the Union.
   iii. Only vote and be voted for in students'
   iv. Representative council election as provided for in Article 12.3 and 13.10 of this constitution.

iv. Life Members

a. Life membership of the Union may be conferred on any ex-member who has made outstanding contributions to the Union, the University or the Nigeria.
b. Life membership shall be conferred only on the authority of the Students' Representative Council.
   i. On a recommendation of the students' Union executive council.
   ii. A resolution of 2/3 of members present and voting at a properly constituted session of the students' representative council.
c. Life members shall have the privilege to be members of recognized clubs and societies of the Students' Union.

16. 'His' means, as the case may be, he or she and/or he and/or she.
17. 'University Authority' shall include the Governing Council, Senate, and/or any other person(s) acting on their behalf.
18. 'Two-thirds majority' means a number approximated to the nearest whole number, as a simple majority is one-third.
19. 'Residents' means occupants of any residential area in the School.
20. 'Tenure of office' means one academic session.
21. 'Properly constituted SRC sitting' means a sitting of the SRC as provided for in this constitution under the ordinary sitting of the SRC.
22. 'Secret ballot' used in this constitution means voting, as opposed to a show of hands, standing behind or before contestants or their pictures and posters, or any other format which requires a show of voter(s).
23. 'FBA' means FUTO Bar Association, an association of practicing barristers at FUTO judiciary.
24. 'Students' Security' refers to security outfits of FUTO students only, such as Man 'O War, Student Military, ICPC, and any other recognized student security.
25. 'Unlawful harassment' means any form of torture, ill-treatment, or compulsory labor, except in a case of being convicted and/or when a judgment is passed by the FUTO High Court or the school management.
26. 'GCSS' means Grand Commander of Students' Security.

ARTICLE 27: AMENDMENTS OF THIS CONSTITUTION

The SRC shall have power to amend or review this constitution us and when necessary as follows;

1. Any section of this constitution may be amended with a motion in writing for amendment submitted to the SRC by any member of the Union.
2. A motion for amendment(s) shall be moved with the amendments precisely stated.
3. The Speaker, through the Clerk, shall cause such proposed amendment(s) to be published on the Union Notice Board(s) if accepted by at least one-third (1/3) of the SRC members present during the sitting.

f. The clerk of the house shall communicate the resolutions of the house to members of the Union.
g. The house shall refer all questions involving substantial issues of Law and the Constitution to the Judicial Council in the first instance, and act on the basis of the resultant advice or pronouncement.

ARTICLE 26: DEFINITIONS

1. 'Union' means the Student Union of the Federal University of Technology, Owerri.
2. 'SRC' (Students' Representative Council) means the legislative organ of the Union, also known as the 'House'.
3. 'High Court' means the court of first instance.
4. 'Executive Council' means the executive arm of the Union.
5. 'Executive(s)' means the executive council members of the Union.
6. 'Officers of the Students' Union' means any member of the Students' Union serving in any capacity.
7. 'Law' means a law, provisions, rules/regulations, and/or policy made by the SRC and/or the law of the land.
8. 'Election' means all elections and by-elections in accordance with the provisions of the constitution.
9. 'Election Commission' means a body appointed to conduct all elections and by-elections for the session.
10. 'Hall' means a Students' Hall of residence as may be established by the University.
11. 'Constituency' means any department or approved program for the purpose of representation at the SRC.
12. 'Off-Campus Student(s)' means those who are not officially accommodated within the University premises/hostels.
13. 'Parliament' means the SRC in session.
14. 'Member(s)' means matriculated student(s) of this University.
15. 'Affiliated member' means student(s) pursuing approved sub-degree programs with the main campus of the Federal University of Technology, Owerri.

v. Grand Patron

The Vice-Chancellor shall be the Grand Patron of the Students' Union.

vi. Patron(s)

a. There shall be a number of patrons as may be recommended by the Executive Council and ratified by the SRC provided not more than two (2) are appointed or elected in a session.
b. A patron shall remain as such except in the following circumstances
   i. He resigns his post as patron
   ii. He dies
   iii. He becomes insane
   iv. Any constituted Law Court of the Land convicts him crime
   v. He is removed by motion supported at least two third majority present at a properly constituted meeting of the SRC.

RIGHTS AND PRIVILEGES

1. Rights: Members shall have the right to:

a. Use the official colours and emblems of the Union.
b. Become member(s) of organized and affiliated societies of the Union.
c. Have the right to fair hearing
d. Vote and be voted for in approved election(s) of the Union as provided for Article 13 of the constitution, except otherwise stated in this Constitution and subject to Electoral Guidelines.
e. Members shall have the right to report all cases of harassment, abuse and intimidation from fellow members and the University, to the officers of the Union.
f. Members shall have the right to petition any officer of the Union who abuses his/her office and power.

2. Privileges:

3.1 Members shall have the privilege to:

a. Use the facilities and equipment of the Union as may be approved by the Union.
b. Participate in all meetings and functions organized or recognized by the Union.

3.2 Person(s) placed under a parliamentary probation shall not have the right (within the period of probation) to vote or be voted for or speak at any meeting organized by/or under the Union or any part thereof.

3.3 Upon the death of member, honorary member, such a member shall be entitled to:
a. Publication of his/her obituary within the university
b. Delegation of at least twenty-five (25) students to witness funeral.
c. Where Article 4 section 3.3b above is impossible such delegation shall pay a condolence visit to the family of the deceased.
d. The delegation shall support the family of the deceased financially or otherwise through the Students' Union Government as maybe determined by the Executive Council.

ARTICLE 5: ORGANS OF THE STUDENTS' UNION

For the purpose of effective administrative administration of the Students' Union Government, there shall be:
A. The Executive Council
B. The Students' Representative Council (SRC)
C. Judicial Council or Judiciary
D. The Students' Congress

ARTICLE 6: EXECUTIVE COUNCIL, POWERS AND FUNCTIONS

1. Composition

There shall be, for the Students' Union, an Executive Council, which shall comprise of the following members, duly elected

4. Power of Panel

a. A panel appointed under this section shall:
i. Have such power to exercise it functions as may be prescribed by the SRC
ii. Within twenty-one (21) days of its appointment, report its findings to the House.

b
i. Where the panel reports to the SRC that the allegation has not been proved, no further proceedings shall be taken in respect to the matter.
ii. Where the panel reports to the SRC that the allegation against the holder of the office has been proved, then within fourteen (14) days of the receipt of the report, the SRC shall consider the report, and if by a resolution of the SRC supported by not less than two-thirds (2/3) majority of all its members, the report of the panel is adopted, then the holder of the office shall stand removed from office as from the date of the adoption of the report.
iii. No proceedings or determinations of the panel of the SRC be entertained or questioned in any court.

Article 25: MISCELLANEOUS PROVISION

1. No law of the Students Representatives Council (herein after also referred to as the house) shall come into force except in accordance with the following provisions.
a. Any proposed law of the SRC shall originate in the house as a Bill.
b. A simple majority shall validly make no act or law unless it is passed by a resolution in the first reading and two third majority in the second reading of the house.
c. The house may resolve to go into a committee of the whole house or a special committee to study its Bill and motion after the first reading.
d. Appropriations made or budgets approved by the house shall have the force of law whether there is attached thereto or not any titled Act.
e. Any valid Act or law of the House shall have a serial number and its provisions shall be arranged in sections; and it shall also have a citation and date of commencement.

f. On the resignation of any member of the house, the Speaker shall forthwith give notice of the resignation to the members of the house.
g. Any officer who resigns his/her membership shall hand over all property of the Union in his/her possession within 48hours to the appropriate, officer who shall hand it over to the Speaker of the house or the Union President as the case may be.

3. Removal from Office

a. An officer of the Union may be removed from office in accordance with the provisions of this section.
b. A person holding any office in the Students' Union shall be removed from office.
    i. Whenever a notice of alleged misconduct against such an officer signed by not than less one-third (1/3) of the members of the house is presented to the Speaker.
    ii. Whenever a notice states that the holder of the office is guilty of gross misconduct, detailed particulars of which shall be specified.
c. The Speaker shall within seven days of the receipt of the notice cause a copy thereof to be served on the holder of the office and on each member of the accused in reply to the allegations to be served to each member of the house.
d. Within fourteen days of the presentation of the notice (whether or not any statement was made by the holder of the office in reply to the allegations to be allegation contained in the notice) the house shall resolve by motion without any debate whether or not the allegation shall be investigation.
e. A motion of the house that the allegation be investigated shall not be declared as having passed unless it is supported by the votes of not less than two-third (2/3) majority of all members of the SRC present and voting.
f. With 24 hours, the house shall appoint seven (7) members to investigate the allegation.
g. The holder of an office whose conduct is being investigated under this section shall be suspended from office and shall have the right to defend himself/herself in person.

constitutionally by the members of the Union in a general election, which shall comprise the following members:

a. The President
b. The Vice President
c. Secretary General
d. The Assistant Secretary General
e. The Financial Secretary
f. The Treasurer
g. Public Relations Officer
h. Director of Welfare
i. Director of Transport
j. Director of Socials
k. Director of Sports
L. Director of Health

2. Powers and function

(a) The Executive Council shall be the working committee of the Union and shall carry out day to day running of the Union in conformity with other sections of this constitution.
(b) The Executive Council shall be accountable to the entire members of the Union through the SRC and the Congress.
(c) Subject to the approval of the SRC, the Executive Council shall seek all concessions, grants and authorization from within or outside the University and enter into such contracts, agreements and carry out such duties as may be necessary, for, or in the business of the Union with the approval of the Vice-chancellor or acting through the Dean of Students' Affairs.
(d) The Executive council shall employ the staff of the Union subject to the approval of the Dean of Students' Affairs.
(e) They shall present a financial report of the Unions account to the SRC through the Finance Secretary, at least twice each semester.
(f) They shall present a budget through the finance Secretary to the SRC for approval at the commencement of their tenure
(g) They shall present an annual audited report of the Union's

account to the SRC through the Finance Secretary at the end of their tenure

(h) The Executive Council shall be responsible for the implementation and maintenance of the constitution and other laws made by the SRC.

(i) A person or group of persons elected into the executive council shall not begin to perform the function(s), or the office until they have pledged to the OATH OF ALLEGIANCE and OATH OF OFFICE as provided by this constitution.

3. Duties of Officers

A. President

a. President shall

i. Be the first member and the head of the Union
ii. Be the Chairman of the Executive Council of the Union
iii. Be the Chief Spokesperson of the Union in all Internal/External representation.
iv. Acting through or with the Secretary General summon meetings of the Executive Council of the Students' Union.
v. Preside at all meetings of the Executive Council and Congress.
vi. Be a signatory to the Students' Union Account together with the Financial Secretary and the Treasurer.
vii. Be responsible for the overall coordination of the activities and efficient functioning of the Union.
viii. Endorse any bill(s) passed by the Students' Representative Council Into Law(s).
ix. Co-ordinate the activities of the National Students body of any other external student body in so far as they affect the Students' Union.
x. Countersign press release(s) or policy
xi. Lead or has power to appoint a leader for all delegations of the Union.
xii. In consultation with the Secretary General and other members of the Executive Council, summon the Congress.

ARTICLE 24: GENERAL

1. Duration of office:

Subject to the provision of this constitution, an elected officer shall hold office until:

a. His/her successor in that office has been duly sworn in
b. The date his/her resignation from office takes effect.
c. He/she ceases to hold office in accordance with the provisions of this constitution.

2. Resignation From office

Any officer of the Union can resign his/her office as indicated below:

a. In the case of the president or any member of the executive, council, the notice of resignation in shall be addressed the speaker of the house writing through the clerk house for the purpose of considering the notice.
b. The notice of resignation shall be accepted by a simple majority of members of the house.
   I. In case of the Speaker/Deputy Speaker, the notice of resignation in writing shall be addressed to the house.
   ii. A meeting of the House shall be summoned by the office who will preside at the meeting. The officer shall cease to hold his office if the of resignation is accepted by a simple majority of the house in case of the clerk or other staff of the house, the notice of resignation shall be addressed to the Speaker of the House.

c. In the case of a member of a standing Committee of the house, the notice or resignation shall be addressed to the appointing authority.
d. In the case of chairman or other member(s) of an ad-hoc committee or either the house or house Executive, the notice or resignation shall be addressed to the appointed authority.
e. The resignation of any officer referred to in c and e above shall take effect when the notice in writing signifying the resignation is received and duly acknowledged by the person to whom it is addressed.

the Executive Council if, in a properly constituted Students' Congress, at least two-thirds (2/3) of the members present and voting decide to recall them.

c. The outcome of Article 23 section 1 sub-section b above shall be copied to the appropriate quarters.
d. A copy of the document shall be made available to the two courts by the Executive Council and the High Court shall cause the Executive Council to publish the recall order within seven (7) days of its submission.
e. From the time of publication, the affected member shall be deemed recalled.

2. The SRC

a. Members of the SRC shall be deemed recalled from the House if those they represent deem it necessary, for any reason whatsoever.
b. A document signed by at least two-thirds (2/3) of the constituents, submitted to the SRC through the Speaker or the Clerk of the House, shall render a representative recalled.
c. The SRC shall make copies of the recall notice available to both courts and the executive council.
d. The High Court shall cause the Executive Council to publish the recall notice to the Executive Council.
e. The member shall be deemed withdrawn from the date of the publication.

3. Any member(s) recalled:

a. Shall not contest for any election within the Union for two semesters thereafter.
b. Shall surrender all Union property in his/their possession within fourteen (14) days.
c. Shall vacate his/their official residence (if any) within the same time interval.
d. May appeal to the High Court within fourteen (14) days.

4. The Electoral Committee shall conduct bye-elections for any post(s) declared vacant through recall within twenty-eight days.

xiii. Consider as appropriate, requests from any member of the executive or a committee/board duly established with the requisite approval of the Students' Representative Council.
xiv. Represent the Union in Senate and Administrative matters
xv. Be the Grand Commander of Students Security (GCSS) FUTO.
xvi. Exercise all other such powers and carry out all other such duties as are herein after allocated to him under other articles and sections of this Constitution.

Powers of the President as the Grand Commander of Students' Security (GCSS)

The president shall

I. Have such powers as to issue instructions and command to the various students' security outfit as at when necessary with respect to the due discharge of their duties.
ii. Over see the activities of the Students Security in FUTO
iii. Be responsible for the duties as may be assigned to, by this constitution as the Grand Commander of Students Security in FUTO
iv. The Students Security shall inform the president (GCSS) of any matter, culprit, offence or detained person(s) before taking any further action.
v. No detained student by the students' security shall exceed 24 hours in detention.
vi. Perform such functions as the Legislature may from time to time deem fit to direct.

B. The Vice President

The Vice President shall:

i. Assist the president in his/her duties and act for him/her in his/her absence
ii. Co-ordinate the activities of the Students' Union Week committee.
iii. In case the office of the President falls vacant, hold the seat pending the conduct of a bye-election.

iv. Carry out all such functions as may be herein after assigned to him/her in this Constitution or by the President.

C. The Secretary General

The Secretary General Shall:

i. Be responsible for general administrative duties in the Union's Secretariat including supervision of staff.
ii. Be responsible for all correspondence.
iii. Convene all Executive meetings at the instance of the president.
iv. Maintain an archive of attendance registers minutes or records of the Executive Council as well as records of all other organs of the Students Union Government.
v. In consultation with other members of the Executive Council complies and sends to the SRC a full report of all the activities of the Union Covering the period of his/her tenure.
vi. Reply as directed and sign all outgoing correspondence of the Union. No correspondence purported to have been issued by the Students' Union shall be valid unless it bears the signature of the Secretary General.
vii. Supervise and direct all the secretarial duties of the Executive Council and supply the Council with adequate stationery needs for the effective execution of its functions.
viii. Delegate any of his/her duties to the Assistant Secretary General as appropriate. In the absence of the Assistant Secretary General such duties; delegated to any other member of the Executive Council subject to the approval of the President.
ix. Keep an impress of not more than 1000 naira, which is subject to review by the SRC from time to time.

D. The Assistant Secretary General

The Assistant Secretary General Shall:

i. Assist the Secretary General in his/her official duties and perform the functions of that office in the absence of the Secretary General.
ii. Co-ordinate all educational programmes

2. Constitution Amendment Committee

This Committee shall be set up other Ad-hoc when the need arises.

3. Other Ad-hoc Committee

The Union may set up other Ad-hoc Committee as the need arises

ARTICLE 22: DISCIPLINE

1. Discipline shall be strictly enforced within the Students' Union and any member found guilty of any offence shall be liable to provided for in this Constitution.

2. Offences

Offences shall include:

a. Flouting the constitution of the Students' Union
b. Acting in a manner that is likely to bring the name of the Students' Union and/or that of the University to ridicule disrepute and/or contempt.
c. Fraudulent or dishonest acts, which may embarrass or disgrace the Students' Union.
d. Defrauding the Union and/or any of its official/agent.
e. Giving out official information of the Students' Union without authority of the Students' Union.
f. Rebellious Publications and subversive articles as determined by the Judiciary.

3. The form of punishment shall depend on the seriousness of the offence as for instance, Suspension from office, removal from office, debarring from holding office, fine, refund, censure and caution as may be reported to the Dean of Students' Affairs.

4. It shall be an offence for any person holding any office in the Executive Council to hold a concomitant position in any club or association, if such a society affiliated to the Union or in any other organization.

ARTICLE 23: POWER OF RECALL

1. **The Executive Council**:
   a. Any member of the Executive Council shall be recalled if members are dissatisfied with his performance.
   b. Executive Council members shall be considered recalled from

ii. The Finance Secretary as the Secretary
iii. One member of the executive Council
iv. Representation of the University Bursar in attendance

b. **Functions**

it shall

i. Prepare the annual/supplementary budget of the Students' Union
ii. Meet regularly to monitor the performance of the budget and recommend necessary adjustments to the SRC.

7. Audi Committee

There shall be established an Audi Committee

Composition:

The Audit committee shall consist of not more than five (5) members.

8. Health Committee

a. Composition

The health committee shall comprise all Health Directors of the different Halls of Residence with the Director of Health as the chairman.

b. Function

i. Maintain all the Union's first aid materials.
ii. Work in collaboration with the University Medical Centre to ensure effective health care services for students.
iii. Ensure adequate health services for the students.
iv. Receive complaints and make recommendations to the Dean of Student Affairs.

ARTICLE 21: AD-HOC COMMITTEE

1. **Union Week Committee I**

a. **Composition**:

The Union Week Committee shall comprise

i. The Vice President as its Chairman
ii. Assistant Secretary General as it's Secretary
iii. Nine (9) other members selected from the Union members by the Executive Council.

b. **Functions**

It shall plan and organize the Union week in accordance with the provisions of this Constitution.

iii. Organize at least one educational programme in a semester
iv. Be responsible for the counting and recording of votes at all meetings of the Executive Council and the Congress
v. Serve as the Secretary to the Students' Union Week Committee
vi. In the event of a vacancy, hold the office of the Secretary General pending a selection:
vii. Perform such other function(s) as may be herein after assigned by the Secretary General or any other Article of this Constitution.

E. The Public Relations Officer

The Public Relations Officer shall:

i. Be responsible for information dissemination among the members of the Union
ii. In Consultation with the presidency and/or Executive Council, carry out the publicity of the Union's activities.
iii. Be the Chairman/Chairperson of the publications committee which is responsible for the Union's Magazine and other periodicals,
iv. Purchase and display newspapers magazines and other publications in students' common rooms.
v. In consultation with the President and Secretary General print almanac, emblems and other publicity materials.
vi. Account to the Finance Secretary for all monies collected within four (4) working days
vii. Maintain the Union's suggestion box(es)
viii. Be in charge of all information units of the Union
ix. Carry out any other function(s) as may be hereinafter assigned by other Articles of this Constitution.

F. The Finance Secretary

The Finance Secretary shall:

i. Collect all monies, dues, fees, levies, donations or fines due to the Union and pay in such amount to the Treasurer within 48 hours and collect receipt for same.
ii. Keep all financial records of the Union

iii. Certify expenses as approved or endorsed by the president and as provided for in the approved budget.
iv. Present at least twice each semester a statement of accounts/financial records of the Union to the SRC with the approval of the Executive Council.
v. Submit financial records for auditing by the Audit committee at the end of each semester as so required.
vi. Be a signatory to all cheques, bills of exchange and all other financial documents of the Union by which the Union's finances are paid into or withdrawn from the Union's bank account.
vii. Perform such other functions as the Legislature may from time to time deem fit to direct.

G. THE TREASURER

The Treasurer shall:

i. Put all monies belonging to the Union within 72 hours of receiving them, the Union's bank account.
ii. Issue receipts for any money or monies collected by him/her from the Finance Secretary.
iii. Remit monies for all expenditures endorsed or approved by the President from the Union's bank account to any person, body, committee or Board, who shall make of such monies as approved by appropriate authorities.
iv. Be a signatory to the Union's cheques, account(s) or any other bill of exchange or financial documents by which monies lodged in the Union's account(s) may be paid to or withdrawn for payment to any person or body.
v. Take custody of, and maintain all books, accounts or finances of the Union Government except as stated elsewhere in the Constitution.
vi. Record all withdrawals and expenditures made or incurred by the Union Government with the requisite authority and approval of the President of the Union Government.
vii. Keep an impress of not more than 1000 naira which is subject to review by the SRC from time to time.

b. **Functions**

i. Be responsible for promotion of social activities of the Union
ii. Ensure that all clubs/societies and associations of the University are registered with the Union and comply with the provisions of this constitution.

4. Welfare Committee

a. **Composition**

The welfare committee shall comprise all welfare officers of the different Halls of Residence with the Director of welfare as the chairman.

b. **Function**

i. Be responsible for the running of the Students' Cafeteria.
ii. Ensure adequate welfare services for the students
iii. Receive complaints and make recommendations to the Dean of Student Affairs.
iv. Be responsible for the maintenance and cleanliness in the campus and cooperate with the university authorities for this purpose.

5. Transport Committee

a. **Composition**

The Transport Committee shall comprise.

i. The Director of Transport as Chairman
ii. Ten members selected from the Union including at least one person from each Hall of Residence.

b. **Functions**

It shall

i. Be responsible for organizing transporting system for Student on a commercial basis.
ii. Treat complaints between students and public transport (bus drivers).
iii. Enforce the maintenance of transport fare to and for the university at a reasonable price.

6. Budget Committee

a. **Composition**

The budget committee of the Students Union shall comprise:

i. The president as it chairman

ARTICLE 19: AFFILIATED CLUBS AND ASSOCIATION/SOCIETIES

Any club/society, association within the university and registered with the Student Affairs Unit (SAU) and having as its primary objectives, the development of the intellectual social and/or cultural aspect of the students' life of the university may affiliate with the students' Union.

ARTICLE 20: STANDING COMMITTEE

The speaker of the SRC shall constitute a standing committee if a need for it arises, when necessary.

1. Publications Committee

a. Composition: The publication committees shall comprise

i. A chairman who shall be the public relations of office

ii. Ten (10) members including at least one (1) person from each Hall of Residence.

2. Sports Committee

a. **Composition**

i. A chairman who shall be the Director of Sports of the Students Union.

ii. Ten Members including at least one (1) person from each Hall of Residence.

b. **Functions**

d. Be the governing body for all sporting activities of the Union

iii. Have powers to suspend or otherwise discipline sports/women who violate rules and regulations.

iv. Determine petition(s) and/or conduct of composition(s) or match(es) and their decision(s) shall be final.

3. Social Committee

a. **Composition**

The Social Committee shall comprise

i. A Chairman who shall be the Director or Socials of the Students' Union.

ii. Ten other members including at least two female members

H. The Director of Welfare

The Director of Students' Welfare shall:

i. Be the Chairman of the Welfare committee.

ii. Be in charge of the general welfare of the Union members.

iii. See to the welfare of the visitors of the Union.

iv. Ensure a clean and neat environment in the school.

v. Take charge to ensure the carry out of a monthly sanitation within the school environment.

ix. Submit a progress report each semester on the welfare and of students to the SRC.

x. Exercise all other functions as may be hereinafter allocated under other articles of this Constitution.

I. The Director of Transport

The Director of Transport shall:

i. Be in-charge of all Unions Vehicles and their maintenance in the Estate and works section of the University through the Dean of Students Affairs.

ii. Give monthly accounts to the SRC on the Union's commercial transport.

iii. Ensure that officers of the Union comply with the rules and regulations for the use of the Union's vehicles as provided for Article 18 of this constitution.

iv. Be in charge of the FUTO park and transport activities

J. The Director of Social

The Director of Socials shall:

i. Be the Chairman of the Social activities Committee, which shall be responsible for all social activities of the Union.

ii. Be the custodian of all audio-visual equipments belonging to the Union.

iii. Grant permission for the use of audio-visual equipments of the Union for activities of affiliated/recognized University clubs and societies after due application.

iv. Maintain a proper inventory of all audio-visual equipments of the Union.

v. Direct activities of the Union during the orientation program in consultation with Executive Council and/or students' Affairs Unit.
vi. To account for all monies collected and/or spent for organizing any social function to the Financial Secretary and to the Audit Committee within two (2) weeks of the conclusion of the event.
vii. Organize at least one social function each semester.

K. The Director of Sports

The Director of Sports shall:

i. Be the Chairman of the Students' Union Sports committee
ii. Co-ordinate and organize all sporting activities of the Union
iii. Be a signatory to all sporting expenses incurred b/the Union
iv. Be a member of the University Sports Committee
v. From time to time present to the SRC program(s) and or report(s) of sporting activities for the current session.
vi. To account for all monies collected and/or spent for organizing any sport function to the Financial Secretary and to the Audit Committee within two (2) weeks of the conclusion of the event

J. The Director of Health

The Director of Health shall:

i. Be a student who has verifiable memberships to professional health organizations, or have undergone basic public health training and workshop.
ii. organize educational seminars, and events focused on health education, disease prevention, and mental wellness.
iii. Conduct regular inspection on the school medical clinic.
iv. Advocae for the enhancement of campus health services and resources
v. Monitor and assess the health needs and concerns of he student body, and recommend appropriate measures to the Students' Union Government.
vi. Be the Chairman of the Health Committee.

4. In the absence of the Director Transport the president and Secretary General shall jointly approve the use of the Unions vehicle both signatures shall be mandatory.
5. All application for the use of the vehicle shall be directed to the president through the Director of Transport.
6. The logbook and movement form shall be properly filled before and after use of the vehicle(s) on every occasion.
7. A token fee to the fix by the executive Council to the paid by the Association, club, society or individual Student(s) of the University wishing to use the vehicle(s) for any journey not lasting more than ten (10) hours. Any extra time spent shall be paid in percentage hours spent that is if:
   X hours= extra no of hours spent
   % of hour spent = x/10 x 100 – 10%
   If Y – Token paid
   Extra amount to be paid = 10x% of Y
   Called FUTUS formula. That the parties concerned shall fuel the vehicle(s) while the Union shall bear the overtime bill of the Union driver as may be determined by the SRC.

8. The Union vehicle(s) shall be parked at the end to each day in the central security office of the University.
9. It shall be an offence for the driver to move the vehicle for any unauthorized journey of any form.
10. On no account shall anybody drive the Union Vehicle(s) other than authorized person(s).
11. Any Union member contravening the provision of Article 18, section 10 shall be liable to punishment. However, in extraordinary circumstances, any student who is licensed to drive may be authorized to assist.
12. It shall be an offence for anybody to temper with any pail of the vehicles without authorization of the Director of Transport (See Article 6, section 3).

2. Budget procedures

a. The Executive Council shall present the annual budget through the finance Secretary to the SRC
b. The SRC shall consider the budget of the Executive Council in strict compliance with the following procedure:
   i. The speaker shall receive the budget after the president address on the budget presentation from the Finance Secretary.
   ii. The SRC shall refer the budget to the budget committee which shall within one week make all necessary amendments and recommendations to the SRC.
iii. The committee shall thereafter invite for interview proposed a budget for clarifications during sitting(s) on the budget.
iv. The SRC may invite the Finance Secretary for any further information it may require.
v. The speaker shall summon within two weeks, 3 sittings of the SRC at which the chairman of budget committee shall present the report of the committee to the SRC for consideration and decision.

ARTICLE 18: STUDENTS' UNION VEHICLE(S) MOVEMENT/USAGE

1. The Director of Transport shall keep the Students' Union Vehicle(s) movement form/logbook. This form/movement book shall contain the following data.
   a. The identity of the user
   b. Date(s)
   c. Time of collection and return of the vehicle
   d. Purpose of use
   e. Odometer reading after use
   f. The condition of the vehicle before and after usage and the destination of the user.

2. The Director of Transport shall inspect the vehicle immediately after usage.
3. In addition to the Director of Transport, the following shall be signatories to the vehicle movement.

i. The president or in his absence, the vice president
ii. In the absence of the officers above, any other person(s) acting in their capacities shall sign.

ARTICLE 7: MEETINGS OF THE EXECUTIVE COUNCIL

i. The Executive council shall meet at least once a month in ordinary session and as necessary in extra ordinary/emergency session.
ii. At least 2:3 of the members of the Executive Council shall constitute a quorum.
iii. The Secretary General shall also convene a meeting of the Executive Council on a request signed by at least 2/3 of members of the council.
iv. The council shall determine the manner in which issues before it shall be voted upon
v. In the absence of any of the president or the vice president, other members present in the meeting shall appoint a chairman from amongst themselves.
vi. Proceeding of the meetings of the Executive Council shall be governed-by Standing Orders shall not be in conflict with any Article of this Constitution.

ARTICLE 8: STUDENTS' REPRESENTATIVE COUNCIL (SRC)

1. Establishment of the SRC: There shall be a Students' Representative Council.

2. Composition

a. The SRC shall consist of only the number of departments and one(1) each from any other approved program.
b. The members of the SRC shall strictly be elected from the departments and student from any of the approved program.

3. Designation of Members and Symbol of Authority

a. The member(s) shall be known and addressed as honorable members(s) of the Student and representative council (MSRC) Mace bearing the crest of the university shall be the symbol authority of the SRC.

4.1 Officers of the SRC

1. Principal Officers
a. The principal officers

i. The Speaker
ii. The deputy Speaker
iii. The Chief Whip

b. These officers who shall be elected members of the SRC shall be elected during the inaugural meeting of the SRC.

4.2 Administrative Officers

a. The Administrative Officers of the SRC shall consist of:
i. The Clerk of the House
ii. The Deputy Clerk of the House
iii. The sergeant At-Arms

b. The above officers who are not members of the SRC shall be elected by members of the SRC.

5. Functions of Officers of the SRC

a. The speaker

The speaker shall:
i. Have powers to summon meetings of the SRC through the clerk of the house
ii. Summon a meeting of the SRC through the clerk of the house on written request of the president of the Union.
iii. Summon an emergency meeting of the SRC through the clerk of the house on a written request of at least one third (1/3) of the members of the SRC.
iv. Preside over all sessions of the SRC
v. Exercise no voting right except a casting vote in the event of a tie.

b. The Deputy Speaker

The deputy speaker shall:
i. Assist the speaker and act for him in him in his absence.

c. The Chief Whip

The Chief Whip shall:

c. Any official who is guilty of any improper expenditure shall be punished to the extent that such improper expenditure and the liability thereto shall be refunded in full.

4. GRANTS

a. Receipts

The Union duly signed and stamped by the finance secretary for presentation to the executive council.

5. AUDIT:

a. The accounts of the Union shall be audited once every semester by auditors as may be appointed by the SRC. The auditors may include external auditor(s) as may be deemed fit by the SRC, the chairman of the respective audit committees shall present the auditor's report(s) and statement(s) of accounts to the SRC. The audited report(s) shall thereafter be published by the financial secretary and displayed in all halls and no later than fourteen (14) days after consideration by the SRC.

ARTICLE 17: BUDGET/BUDGET PROCEDURES

There shall be an annual budget of the Union

1. **Budget**

a. The executive council of the president of the Union shall through the finance secretary present an annual budget to the SRC.
b. A copy of the approved budget shall be presented to the dean student's affairs for his information.
c. Once approved by the SRC, no amendment shall be made except on the recommendations of the executive council.
d. The finance secretary's statement of account shall be,
e. The recurrent5and capital appropriation of the Union shall be made up; to annual dues surplus transferred from the previous budget (if any) and other revenues that may be generated by the Union.
f. The Union shall establish a sinking fund. At least five percent (5%) of the Union funds shall go into the sinking fund account in a bank approved by the SRC for this purpose.

2. STUDENT'S REPRESENTATIVE COUNCIL

a. Members of the SRC shall be elected for one academic year, unless they resign or are removed in accordance with the provisions of this constitution.

b. A member of the SRC shall be deemed to have fortified his seat in the house if the speaker declares that he absented himself from three permission from the speaker in consultation with the Clerk of the house.

c. In the event of a registration, removal from the office or death of an SRC member, there shall be a bye election in his constituency within two weeks. If the member affected is the speaker or deputy speaker, members of the SRC shall elect a new speaker or deputy speaker.

d. In the event of a resignation, an SRC member shall submit his letter of resignation through the clerk to the SRC. The speaker shall submit his own letter of resignation through the deputy speaker.

e. The speaker or deputy speaker shall stand removed from office as speaker or deputy speaker of the SRC tentatively if a motion for his removal is passed by two third(2/3) majority of a properly constituted SRC sitting.

f. Capital expenditure in respect of utilities provided by the Union,

g. Free school hostel accommodation for every official of the Union,

h. Grants-in-aid made to affiliate clubs and societies.

3. DISBURSEMENT OF UNION FUNDS

a. Union funds shall only be disbursed on the authorization of all three of the following signatories:
   i. The Union president
   ii. Treasurer
   iii. Finance Secretary

b. The appropriate officers shall sign all vouchers for purchase before payment is made

i. Ensure that notices of meetings are delivered to all SRC members

d. The clerk of the House

The clerk of the house shall

i. Convene meetings of the SRC on the directives of the speaker containing the agenda reached by members of the SRC at least 48(forty-eight) hours before the meeting
ii. Record the keep in good order minutes of the proceedings of meetings of the SRC.
iii. Keep custody of reports of panels and ad-hoc committee of the house
iv. Perform all other such functions as may hereinafter assigned under other articles of this constitution.

e. The deputy clerk of the house

The deputy clerk of the house shall:

i. Assist the clerk of the house an act for him in his absence
ii. Keep record of attendance of members of SRC at meetings
iii. Perform all other such functions as may be here in after assign under other article of this constitution.

f. The sergeant At-Arms

The sergeant At-Arms shall:

i. Maintain law and order in the house
ii. User the speaker in and out during SRC meetings
iii. Carry the Mace of the house and keep Custody of same
iv. Perform all other functions as may be hereinafter assigned under other "Articles of this Constitution".

6. Powers and functions of the SRC

The SRC shall:

1. Be the highest law making body of the Union. It shall have powers to make laws for the peace, order and good government of the Union consistent with the Acts. States and regulations of the university or other laws of the land.

2. Have powers to scrutinize, modify and approve the budget presented by the Executive Council before it becomes valid and operative.
3. Consider, approve or reject the budget submitted by the Executive Council within twenty-one days.
4. In a situation where Article 8, section 6, sub-section 3above is not met have the powers to approve an amount considered appropriate for the work, of the Executive Council, as an interim measure, pending Executive Council, as an measure, pending the approval of the budget.
5. Have powers to criticize, scrutinize ratify amend or reject the budget proposal(s) of the Executive Council.
6. Have powers to approve the Banker(s) recommended by the Executive.
7. Have powers to suspend or stop payment for any transaction in the name of the Union or disbursement of funds from the Unions account subject to the provisions of Article 16 and 17 of this constitution.
8. Have powers to appoint any member of the Union or approved employee of the University or an external expert subject to the approval of the Vice-Chancellor through the Dean of Students' affairs to serve the Union in an advisory, supervisory or administrative capacity with such powers as SRC may consider necessary at the time.
9. In the absence of both the speaker and his deputy, the members of SRC shall elect a Chairman for the meeting.
10. Have powers to summon any member(s) of the executive council for clarification and by a two-third (2/3) majority of the members present and voting at a sitting of the house, may proceed to warn, suspend or dismiss such member(s) where found guilty in accordance with Article 8 section 7.
11. Have powers to pass bill(s) into "Law by a two-third (2/3) majority of members present and voting at a sitting if the president falls to sign the bill(s) into law within 21 (twenty-one) day after the president had been notified by SRC.

2. Assets

The assets of the Union shall include:

a. Membership Dues:
Membership dues of eight hundred naira (800) per member and Three Thousand Naira (3000) for each fresher as SUG fees

b. Donations:
Subject to the approval of the SRC, the Union shall undertake fund raising activities, when and where necessary and shall receive aids, grants and gifts from individuals and organizations, provided that such assistance does not in any way prejudice the Articles of this Constitution or undermine the policy and the objectives of the Union.

c. Profits
All profits due to or accruing from sponsored activities as well as service provided by the Union shall from part of the Union finances.

3. Liabilities

a. Furnishing and maintenance of the Union buildings and vehicles.
b. Salaries of Union employees.
c. Stipends for Executive officers of the Union.
d. Allowances for members of the Judiciary Council.
e. Ordinary sitting allowances for members of the SRC.
f. Expenses in respect of approved activities of Union where the office concerned in 15, 1 c. above has no vice or Deputy, the Executive Council shall delegate any member to cover the functions of the office till a new officer is Sworn-in.
g. In the event of resignation, the President shall submit SUG letter of resignation to the SRC through the speaker for the acceptance or rejection.
h. If 15.1 c. occurs within two (2) months to handover, the executive 4 council shall appoint somebody to fill the vacant office subject to ratification by the SRC.

shall be final. All petitions shall be instituted within forty-eight hours after release of the results and shall be disposed off within seven (7) days after election.

10. The SRC Members shall elect its own representative.
11. Each constituency shall elect its own representative.
12. Each outgoing officer of the Executive Council/SRC shall be required to make a written handover of all documents/property in their possession to their successor not later than two (2) weeks after the swearing -in- ceremony.
13. The swearing-in- ceremony as above shall take place three (3) weeks before the lecture free week as may be determined by the University academic calendar.

ARTICLE 14: QUALIFICATION FOR STANDING ELECTIONS

1. Every member of the Union who wishes to stand for election in the Union must possess a minimum CGPA of 3.00 for the post of the President and 2.50 for the other posts.
2. All aspirants under the FUTO SUG shall obtain an affidavit from the Student's High Court, FUTO to assure peace keeping and good conduct.

ARTICLE 15: TENURES OF OFFICES

1. Executive Council:

a. Members of the Executive Council shall hold office for one academic year from the time of their election.

b. Members of the Executive Council shall be deemed to have deserted their offices if the President declares that they have been absent from three consecutive meetings of the Council and if it is so confirmed by the Executive Council.

c. In the event registration, removal from office or death, a bye – election shall be conducted within twenty- eight (28) days of such resignation, removal or death to fill the vacant office.

ARTICLE 16: STUDENTS UNION FINANCES

1. Bank account

The Union shall have bank Account with any bank as may be determined by the Executive Council and ratified by the SRC

12. Have powers to setup to Ad-hoc standing committee(s) as may be necessary for the running of the house by a two-third (2/3) majority of members present and voting at a session of the SRC.
13. In the event of a situation not provided for in this constitution occurring, have powers to make and enact laws to take care of such a situation provided such an event is in the interest of the Union and shall be consistent with Act, statues and Regulation of the University.

7. Impeachment Procedure

a. The Executive Council

i. The holders of such office(s) whose conduct is being investigated under this section shall stand suspended from office pending the outcome of the investigation and shall have the right to defend themselves in person before the house.

ii. A motion of impeachment shall be raised against any member(s) of the executive council.

iii. The SRC shall proceed to investigate the charges if accepted by one-third (1/3) of the members of the SRC present and voting at the setting up of an investigation committee.

iv. The investigation committee shall submit its findings through the speaker within 7 (seven) days.

v. The SRC shall proceed to warn, suspend or remove any two or all the officers by a resolution supported by at least two-thirds (2/3) majority of members present and voting at the sitting.

vi. The speaker shall summon a meeting within 48 (forty-eight) hours of recording the motion for impeachment and within 24 (twenty-four) hours of receiving the report of the investigation committee.

b. The Legislative Council

Neither the speaker nor the deputy speaker shall be removed from office unless in the following circumstances.

I. If a motion for removal is signed by at least two thirds (2/3) majority of members of the SRC and submitted to the clerk of the house calling for such removal.

ii. If the presiding office is involved, the clerk of the house shall have the power in the circumstance(s) to convene an emergency session of the council as the case may be and the deputy speaker shall preside at this sitting.
iii. If the SRC passes a motion by at least two-third majority of members present and voting at a properly constituted sitting, such officer shall stand removed.
iv. When the SRC calls for the removal of the speaker, the deputy speaker shall preside over the sitting that considers the motion. But where the council calls for the removal of the deputy speaker, the speaker shall preside over the sitting that-considers the motion.
v. In the absence of these officers or where the council calls for removal of both, the council shall elect a person from its membership to preside over the consideration of such motion.

8. Sitting of the SRC

a. Inaugural session:

i. The Inaugural and sitting of the SRC shall be summoned by the president elect and be held not later than 72 (seventy-two hours after swearing-in of the president).
ii. Officers of the SRC shall be elected at the inaugural sitting
iii. The chief electoral officer shall conduct the election of officer of the SRC. It shall be secret ballot.

b. Ordinary Session:

i. The speaker shall, in accordance with the provision of this constitution, summon ordinary meetings of the SRC.
ii. The Mace shall be presented and placed conspicuously before the speaker or any person acting in that capacity at all SRC sessions:
iii. Voting shall be any show of hands unless otherwise decision by the SRC.
iv. One-third (1/3) of the members of the SRC shall constitute a quorum at ordinary sessions.

4. Neutrality

a. The electoral commission as the name implies shall be independent and neutral.
b. An electoral officer shall not contest for or hold any concomitant office in the students Union.

ARTICLE 13: ELECTIONS

PROCEDURES:

1. Elections shall be conducted at the beginning of the second semester of each session/academic year and in any case not later than six weeks after resumption during the second semester.
2. The electoral commission shall draw up regulations subjects to the provisions of this constitution. Such regulations shall be published at least two weeks before the date of the elections.
3. Candidates shall be matriculated regular students of this university who have spent at least one full academic standing and shall neither be on disciplinary probation nor of questionable character.
4. Elections shall be by secret ballot.
5. A member of the Union body shall have only one vote for any particular office.
6. At the end of the polling, the chairman or any member of the electoral commission as may be delegated, shall open the ballot boxes and count the votes in the presence of the candidates and/or one of each of the candidates.
7. The chairman shall announce the results of the elections as soon as the counting completed and the details published within twenty-four (24) hours of completing the counting.
8. The winner in any election shall be the candidate with the highest number of votes. In the event of a tie, the Electoral Commission shall arrange for a runoff election within seven days.
9. All petitions on the electoral malpractice shall be directed to the Electoral court, which shall be set up by the Judicial Council. Any candidate or party dissatisfied with the decision Judgments

president to summon a congress shall within twenty-four (24) hours of receiving such.

f. The meetings for the students' congress shall be a forum for the president of the Union to brief members of the Union on the programs and activities of the Union, questions and comments shall be entertained during the meetings.

ARTICLE 12: ELECTORAL COMMISSION

There shall be for the Union an ad-hoc electoral commission to be called the independent student electoral commission (ISEC).

1. Functions:

The ISEC shall be responsible for

a. Drawing up the bylaws and guidelines for the Unions election.
b. Registration of voters
c. The direction, conduct and supervision of the election for the Union.
d. Counting of votes, announcements and publication of the results of the elections.

2. The execution of functions by electoral commission as provided for in section 1 (a) - (d) of this article shall be in strict compliance with the provisions of the constitution.

3. Composition

a. The Electoral commission shall comprise of only elected final year students as members.
b. They shall be elected one each representing the existing schools and one shall be appointed by the committee an odd number.
c. The chairman shall be appointed by the vice chancellor from the numbers of the commission.
d. The dean, students" affairs of the university or his representatives shall be an observer all through election process.

v. Except otherwise stated in this constitution, every question or proposal shall be decided by simple majority of the vote of the members of SRC present at the sitting. In the event of a tie, the speaker shall have a casting vote.
vi. Subject to the provisions of this constitution the SRC shall have powers to regulate its own procedure including the procedure for recess of the house.

c. Emergency sessions:

i. The procedure for summoning emergency sitting of the SRC by speaker shall be as provided in Article 8 section 5 subsection a (ii) and must be acted within 12 (twelve) hours.
ii. The speaker will summon an emergency meeting of the SRC through the clerk of the house on the written request of the president.
iii. If the speaker fails to summon the emergency meeting as required by the constitution the Deputy Speaker shall summon it; and if the deputy speaker fails to summon the emergency meeting then the clerk of the house shall do so.
iv. Notice of an emergency meeting of the SRC shall be conspicuously displayed in all in all halls of residence, Students' Union buildings notice shall contain the age of such sitting.
v. Procedure for emergency session shall be the same as for ordinary sessions vi. Quorum for emergency sitting shall be constituted by one third (1/3) of members of the SRC.

9. In-House Committees

There shall be In-House Committees appointed by the Speaker, during the second sitting of the House, made up of 5 members of the SRC each. There shall be a Chairman and Secretary for each committee.

A. Functions of the In-House Committees

I. These committees shall assist the different functionaries and perform different functions as assigned to them by the speaker.

ii. These committees shall check the activities of all functionaries within and below the Students' Union.
iii. These committees shall give report to the house on their activities and the activities of the functionaries whom they work with or supervise.
iv. These committees shall report to the house any functionary who errs in the carrying out of his duties or any inconvenience they encounter while discharging their duties.
v. These Committees shall take complaints from students as regards to issues they face which lie within the jurisdiction of their committee and report such to the house.
vi. These committees shall report any erring member or Chairman to the House to the Speaker for appropriate actions to be taken.

B. Checks on the In-House Committees

I. The Speaker shall supervise these committees and caution them when necessary.
ii. The House shall have the powers by two-third majority to remove a member or all members of any given committee which errs in the due discharge of their duties by passing a vote of no confidence on them after they have been cautioned twice by the Speaker.
iii. The Speaker shall nominate person(s) to replace the removed committee or its member(s) with the approval of two-third majority of the House.
iv. All committees should ensure that they live up to expectations and preserve the integrity of the House.

ARTICLE 9: THE JUDICIARY

1. There shall be for the Union Judiciary

a. Establishment

i. There shall be a court of first instance to be known and called "Students' High Court", whose members shall be referred to as Judges. It shall be constituted with the four (4) weeks of the inauguration of the SRC.

11. Student's Hall Council

a. Establishment
There shall be established a student's hall council
b. Composition:
i. The SUG president
ii. The secretary general of the Union
iii. All other executive members of the Union
iv. Members of the executive council of each of the hall governments.

Functions:

The hall council shall:
Meet at least once per semester to formulate policies that will enhance better conditions.

ARTICLE 11: THE STUDENTS' CONGRESS

1. Establishment

There shall be a students' congress of the Union.

2. Composition

Members of the student's congress shall be open to all members of the Union.

3. Meetings

a. The Union shall be supreme organ of the Union.
b. The student's congress shall meet at least once a semester.
c. The president of the Union shall be chairman of the congress.
d. The president of the Union summon and preside over all meetings of the congress, and in his absence, the vice president of the Union,
e. On a written request signed at least one third (1/3) of the members of the SRC through speaker to the president and in all notices boards, the president shall be compelled to summon the congress within twenty-four (24) hours of receiving such notice. Any member of the Union upon a written request signed by at least two hundred (200) students' with names, registration numbers and departments and published on all notices board shall compel the

6. Functions of the Embassy Government

A. Ambassador

The ambassador shall

i. Head the embassy government
ii. Summon all meetings of the embassy government,
iii. Preside at all meetings of the embassy government
iv. Supervise and coordinate all activities of the embassy
v. Cary out all these duties as may be hereinafter assigned to by the SRC.

B. Deputy Ambassador

The deputy ambassador shall

i. Deputize in the absence of the ambassador
ii. Carry out activities as may be assigned to by the ambassador.

7. Tenure

The tenure of the hall/embassy government shall be same as that of the SUG.

8. Meetings

i. The hall/embassy government shall meet with members of the embassy at least once a semester.
ii. A quorum shall be formed by 2/3 of the executive members to the nearest whole number during general meetings.

9. Voting

i. **For the Hall Government**

Decision of the government shall be determined by simple majority of members present and voting.

ii. **For Embassy Government**

Decision of the embassy government shall be determined by simple majority of the lodge presidents

10. Elections

Shall be in accordance with the provisions made in other, article(s) of this constitution.

ii. The students' High Court shall have five members, selected by the FUTO Bar Association, ratified by the SRC and thereafter appointed by the Executive Council.
iii. The composition of the court shall exclude members of the Executive and the SRC. It shall consist of members of the Association who are neither in the Executive nor in the SRC. Such members must be honest, fearless, and of unquestionable character, and must have spent not less than one academic session in the Union.
iv. Members shall have a good knowledge of the Union's Constitution'
v. There shall be for the Judiciary of the Union government, a Chief Judge, who shall appoint a Registrar and a Clerk of Court, from outside the members.
vi. The court shall be set up by an incoming Executive and shall be ratified by the SRC and shall remain in force until a succeeding Executive dissolves it and new members appointed.

b. Functions:

The functions of the Students 'High Court shall be:

1. Exercising the judicial powers conferred on it by the provisions of this constitution to entertain all forms of litigation.
   a. Brought to it by any Union Members(s)
   b. Between a student or group of students and club/Association; or between a club/Association and another club/Association.
   c. Such other persons as cafeteria operators and any other(s) having business ventures operating under the Union from time to time
2. Exercising original and appellate jurisdiction over matters relating to the following:
   a. Elections and petitions relating thereto.
   b. Interpretation of Acts, Laws or rules; orders or regulations made there under by the Legislation.
   c. Code of conduct, interpretation thereof and the breach of the code by any person or body or persons.

d. Interpretation of Acts, Laws and Rules; orders or regulations made there under by the legislation.
e. Whether any of the provisions of constitution of the Federal Republic of Nigeria Relating to the fundamental rights of the citizen or any other provisions of the constitution to which the provisions of the constitution subject has been, is being or is likely to be contravened or breached by any person or body or organ of the Union in relation to any person.
f. The constitutionality or otherwise of any action taken by the executive council or any member thereof or by agency or the executive council or any committee or board established by the executive or any members of the legislatures.
g. Such other matters as may be prescribed by an act, law or bylaw, rule-order or regulation made there under by the legislature from time to time.
h. The high court shall have jurisdiction over the members of executive or the speaker or the SRC when acting in their official capacities.
i. All such cases shall be tried and judgment delivered within 21 days.

2. The Judicial Council

a. Composition of the judicial council

The Judges of the students' High Court
Justices of the Court of Appeal
The President of the FUTO Bar Association (FBA)
The Secretary of FBA
Two other members nominated by the FBA who are members of the FBA and ratified by the SRC.
The Deputy Registrar

b. Officers of the Judicial Council

i. The Chairman
ii. The Registrar
iii. The Deputy Registrar

ii. Carry out periodic inspection and ensure good sanitary environment as well as living conditions of inhabitants of the hall.
iii. Carry out such other function(s) as may be hereinafter assigned by other articles of this constitution.

D. Hall Treasurer

The hall treasurer shall:

i. Be in custody of all the hall government monies,
ii. Be signatory to the financial account of the hall government.
iii. Keep record of all monies coming into and/or going out of the hall government's account,
iv. Tender a financial report of the hall government periodically.

E. Sport Officer

The sport officer shall

i. Co-ordinate all sporting activities of the hall.
ii. Be in custody of all the hall sporting materials and equipment.

F. The Socials Officer

The socials officer shall

i. Organize and coordinate all social activities of the hall
ii. Organize an annual hall week for each hostel.

D. The Hall Director of Health

The hall treasurer shall:

i. Be a student who has verifiable memberships to professional health organizations, or have undergone basic public health training and workshops.
ii. Oversee the Hall sickbay unit with healthcare providers and staff, providing Hall residents with first aid care.
iii. Implement health and safety protocols in the Hall.
iv. Address health complaints and concerns in the hall whilst ensuring complicated issues beyond first aid care are directed to the University Medical Unit for treatment.
v. Establish standards of care for hostel residents to adhere to, including guidelines for resident care, emergency procedures, and infection control.

Hall Warden who shall be appointed by the Vice Chancellor, and the director of Welfare should be communicated within 24hours before the report is forwarded to the Hall master.

g. The Hall Government shall certify daily, the job(s) of the cleaner(s) employed in the Hostel. Ensuring that they work with the necessary materials.
h. All the welfare officers of the different halls of residence shall constitute the welfare committee of the SUG with the Director of Welfare as the chairman.

They shall supervise the business centers, reading room; SUG and University properties within their Hall(s) of Residence.

i. They shall carry out other function(s) as may be hereinafter assigned by other Article(s) of constitution.

5. Functions of the Officers of the Hall Government

A. Hall Governor:

The Hall Governor shall

i. Be the Head of the hall government
ii. Acting through or with the secretary summon all meetings of the hall government.
iii. Preside at all meetings of the hall government
iv. Supervise and coordinate all activities of the hall,
v. Be signatory to all financial dealings of the hall government.

B. Hall Secretary:

The hall secretary shall;

I. Convene all meetings at the request of the governor.
ii. Keep attendance register/record or minutes of meetings.
iii. Keep in consultation with the hall porter a list of names of legal occupants of that hall.
iv. Keep all the financial records of the government
v. Be a signatory to all the financial dealings of the hall government.

C. Welfare Officer:

The welfare officers shall:

i. See to overall welfare of the occupants of the hall,

c. Functions of the judicial Council

i. The Chairman

He shall

a. Be the head of the judicial council
b. Perform any other function prescribed in this constitution

ii. The Registrar shall:

a. Serve as secretary to the Judicial council
b. Summon Judicial meetings in constitution with the chairman
c. Act as Registrar to the membership of the Judicial Council
d. Keep a Register of the membership of the Judicial Council
e. Be the custodian of the Registers, minute books and other documents and properties of the judicial council
f. Be the administrative officer of the Courts
g. Perform any other function(s) as prescribed in this or as may be directed by the chairman.

iii. The Deputy Registrar shall:

a. Deputize for the Registrar in his absence
b. Assist the Registrar in the performance of his duties
c. Perform other functions as may be directed by the Registrar or the chairman.

3. Judgment of the Court of Appeal

a. The ruling of the court shall be binding on the litigants unless reversed by the court of appeal.
b. The ruling of the court will be communicated to the people involved and copies sent to:
    i. The Dean of Students' Affairs
    ii. The Executive the SRC and the Union through the Secretary General
    iii. The Students' court of Appeal
    iv. The University Security unit/paramilitary organization.
    v. All notice boards
c. The Dean of Students' Affairs shall enforce the rulings of the court
d. Parties to a suit shall be at liberty to engage counsels provided such must be current Students of the university, with over one Academic session. Membership in the Union
e. Counsel(s) shall register with the judiciary on the payment of a fee to be determined by the judicial council.

4. The Court of Appeal

a. Composition

The students' Court of Appeal shall be composed of:

i. Five students who are members of and are recommended by the FUTO Bar Association to be appointed by the Executive Council and ratified by the SRC.
ii. The legal adviser to the Students' Union as the president.
iii. The Dean of Students' Affairs or his/her representative
iv. The registrar who must be a Student Barrister.
v. The Deputy Registrar

b. Sitting:

The chief Judge and any other three members shall constitute a quorum.

c. Functions:

The Students' court of Appeal shall have powers to handle:

i. All constitution matters referred to it by the Union or any member(s) thereof.
ii. All cases of Appeal after ruling by the high court

5. Judgment of the Court of Appeal

The ruling of the Students' Court of Appeal shall be final and shall be communicated to the Union as in Act:3(b).

6. Removal of a Judge

a. A judge of the judicial council shall be removed by the two-third (2/3) majority or nearest whole number thereof of the legislature sitting at a joint session for the purpose of this section, and acting on the written petition of a member of the judicial council signed by a. simple majority of the council, for inability to discharge the functions of his office or for gross misconduct as may be determined by the judicial council.
b. But the SRC cannot summon any judge as a result of these official duties (judgment delivered).

ARTICLE 10: THE HALL/EMBASSY GOVERNMENT

1. Establishment:

There shall be an established Hall/Embassy Government for each of the Students' Hostels and any other residential area/embassy recognized by

the SRC from time to time.

2. Membership

The members of the Hall Government shall consist of FUTO students who are registered occupants of the particular Hall for that particular academic session, while that of the embassy shall be for known students of that embassy.

3. Composition

i. Each Hall Government shall consist of:

a. The Hall Governor
b. The Hall Secretary
c. The Hall Welfare Officer
d. The Hall Treasurer
e. The Hall Spoils Officer
f. The Hall Social Officer
g. The Hall Director of Health

ii. Each embassy shall consist of

a. The Ambassador
b. The Deputy Ambassador

4. Powers and functions of the Executive Council of the Hall/Embassy Government

a. Each Hall/Embassy Government shall care for residents' needs and welfare, and shall ensure the active involvement of students of their Hall/embassy in the activities of the students' Union.
b. The Hall/embassy Government shall be accountable to the Union and the SRC through its individual Hall Governor and ambassadors who shall present a report of its activities.
c. The Hall/embassy government shall be and remain part of the SUG.
d. The Hall/embassy government shall report matters requiring the attention of the SUG through the director of welfare who shall transmit same to the appropriate quarters within 48hours.
e. On no account should officers of the Hall/embassy Government hold any meeting with the Dean of Students' Affairs in the absence of the Union president or his representative.
f. The Hall Government shall also report sensitive issues to the